

HEADNOTE

“According to Rule 271.5 (a) RoP, service may be effected at any place within the Contracting Member States where the company or other legal entity has a permanent or temporary place of business. The latter may be the case at a trade fair stand if, as is normally the case, advertising is made there at least also for deliveries.”

COURT

Local Division in Düsseldorf

PROCEEDINGS

Infringement action

PATENT

EP 2 061 575 B1

DEVICE FOR CONTINUOUS

FILTRATION OF IMPURITIES FROM

A MOLTEN PLASTIC

KEYWORDS

Service of process

Trade fair

Permanent establishment

Rule 271.5

Jurisdiction

Rule 271

Service of the Statement of claim

SUMMARY

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a device for continuous filtration of impurities from molten plastic. According to the headnotes of the decision, service of legal documents on a company may be effected at any location within the contracting member states where that company maintains a permanent or temporary place of business, which can include a trade fair stand if the company is also advertising its services or products there.